

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

PRESENT: HON. BRENDAN T. LANTRY

PART

46M

Justice

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KENILWORTH HOLDINGS LLC, 21-45 23RD ST. LLC, 39-12
62ND ST. LLC, 42-59 BOWNE ST. LLC, 1369 COLLEGE LLC,
593 PARK PLACE MANAGEMENT INC., and 43RD STREET
ASSOCIATES LLC,

INDEX NO. 453580/2026MOTION DATE 09/02/2026MOTION SEQ. NO. 001

Petitioners-Plaintiffs,

DIFIORE REALTY LLC,

Intervenor-Petitioner,

- v -

NEW YORK CITY RENT GUIDELINES BOARD,

**ORDER – INTERIM
(MOTION RELATED)**

Respondent-Defendant,

NEW YORK STATE TENANTS AND NEIGHBORS,
METROPOLITAN COUNCIL ON HOUSING, ELISA BLYNN,
MASSEIL SANTOS MOTA, MAGALI R. RIVERA UBIDIA,
RAYMUDA VAZQUEZ, ABUNDIO GONZALEZ, CENTRAL
PARK GARDENS TENANTS' ASSOCIATION, INC.,
P.A.'L.A.N.T.E. HARLEM, and HAMILTON HEIGHTS TENANT
ASSOCIATION,

Intervenor-Respondents-Defendants.

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The following e-filed documents, listed by NYSCEF document number (Motion 001) 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 19, 21, 22, 23, 24, 42, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 126, 133, 150, 160, 162, 163, 191, 202, 204, 222, 223, 224, 225

were read on this motion to/for

ARTICLE 78/JUDGMENT - DECLARATORY

WHEREAS by interim decision and order dated September 16, 2026 (“September 16, 2026 Interim Decision and Order”), this court granted count four of petitioners-plaintiffs’ petition to the extent that the court found certain limited discovery to be necessary in this matter (NY St Cts Elec Filing Doc No. [NYSCEF] Doc No. 222); and

WHEREAS the court further ordered petitioners-plaintiffs to file a discovery demand in accordance with the September 16, 2026 Interim Decision and Order via NYSCEF by September 18, 2026 (*id.*); and

WHEREAS the court further reserved decision on the remaining applications and ordered the parties to appear for a discovery conference on September 21, 2026 at 9:30 am at 71 Thomas Street, room 103, New York, New York (*id.*); and

WHEREAS by correspondence dated September 17, 2026, respondent-defendant requested an adjournment of the September 21, 2026 appearance due to Yom Kippur, a religious observance, and for time to review petitioners-plaintiffs' discovery demand (NYSCEF Doc No. 223); and

WHEREAS on September 18, 2026, petitioners-plaintiffs filed a discovery demand via NYSCEF (NYSCEF Doc No. 225); and

WHEREAS in the September 16, 2026 Interim Decision and Order, the court initially refrained from requiring a response from respondent-defendant to petitioners-plaintiffs' discovery demand due to the time-sensitive nature of the application and the expedited September 21, 2026 conference date; and

WHEREAS the court has received no objection to respondent-defendant's adjournment request; now, therefore, it is hereby

ORDERED that the adjournment request is granted without objection; and it is further

ORDERED that respondent-defendant shall file a response to petitioners-plaintiffs' discovery demand via NYSCEF by September 23, 2026; and it is further

ORDERED that respondent-defendant's response shall include any responsive documents immediately available, any objections to petitioners-plaintiffs' demand, and a proposed timeline for production of documents responsive to petitioners-plaintiffs' demand; and it is further

ORDERED that the parties shall appear for a discovery conference on September 24, 2026 at 9:30 am at 60 Centre Street, room 300, New York, New York.

The foregoing constitutes the order of the court.

9/18/2026

DATE

CHECK ONE:

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CASE DISPOSED

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GRANTED

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DENIED

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NON-FINAL DISPOSITION

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GRANTED IN PART

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OTHER

APPLICATION:

☐

SETTLE ORDER

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SUBMIT ORDER

CHECK IF APPROPRIATE:

☐

INCLUDES TRANSFER/REASSIGN

☐

FIDUCIARY APPOINTMENT

☐

REFERENCE

BRENDAN T. LANTRY, J.S.C.